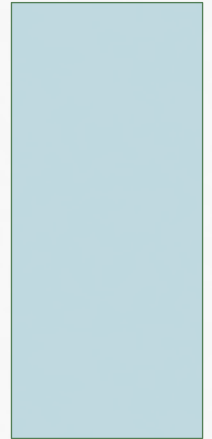


CHAPTER 1 OVERVIEW OF INTERNATIONAL ORGANIZATIONS



SECTION ONE CONCEPT AND COMPOSITION OF INTERNATIONAL ORGANIZATIONS

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

A. Definitions across disciplines

(1) International Law

Emphasizes that an international organization is a subject of international law—a legal and institutional form of cooperation among states—endowed with the capacity to bear international rights and obligations.

(2) International Relations

Focuses on the behavior and outcomes of international organizations, viewing them as instruments for advancing national interests, tools of international interaction, and effective channels for cooperation. As a new and increasingly important actor, an IO shapes the organizational evolution of international society.

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

B. Broad vs. narrow definitions

(1) Broad definition:

Any multilateral body that transcends national boundaries and aims to promote international cooperation and understanding. As long as two or more states, their governmental or non-governmental entities, or even individuals establish an institution through some form of agreement for a given purpose, it counts as an international organization. This category encompasses inter-governmental organizations, non-governmental organizations, and transnational corporations.

(2) Narrow definition:

An organization in the sense of international law: a permanent system or body created by member governments through an agreement that conforms to international law in order to pursue specific objectives of common interest—namely, an inter-governmental organization endowed with the capacity to bear international rights and obligations.

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

C. External characteristics

(1) Internationality: operates between, not above, states.

An international organization is essentially a non-hierarchical body erected on the sovereignty-based system that prevails in an anarchic international environment; it is neither a world government nor a supranational authority, but an inter-state institution and a modality for inter-state cooperation.

(2) Institutionalization: possesses permanent organs and operating rules.

- Permanent organs give the organization durability and a measure of autonomy.
- Operating rules enable it to carry out actions within its competence and to bind its members.

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

D. International Organizations vs. International Conferences

International Conference:

A gathering convened by states to discuss issues of mutual concern, coordinate interests, and seek or adopt joint action—such as adopting resolutions, reaching agreements, or concluding treaties—through dispatched representatives.

Key difference from an international organization:

It has no permanent organs.

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

- E. International Organizations vs. International Institutions and International Regimes
- Narrow sense:
 - Denotes the cluster of implicit and explicit principles, norms, rules, and decision-making procedures around which actor expectations converge in a given area of international relations.
- Broad sense:
 - Encompasses international organizations, international regimes, and customary practices; it is an overarching concept that includes both the normative rule-system and its organizational embodiments.
- Relationship with international organizations:
 - - Regimes operate through the physical machinery of international organizations.
 - - International organizations act as coordinators, custodians, and supervisors of regimes.
 - - Regimes can exist without being anchored in an organizational entity.
- Relationship with international institutions:
 - International organizations are one manifestation of international institutions.

I. THE CONCEPT OF INTERNATIONAL ORGANIZATIONS

F. International Organizations and International Morality

- The emergence and growth of international organizations reflect, to a degree, people's aspiration for peace, friendly cooperation, and the pursuit of noble political ideals.
- As international organizations have evolved, cooperation has gradually shifted from an exclusive emphasis on national interests and state sovereignty toward concern for international morality and the shared responsibilities of the international community.
- Yet the moral priority claimed by international organizations does not imply moral absolutism.

II. CONSTITUENT ELEMENTS OF AN INTERNATIONAL ORGANIZATION

- **Organizational Members:**

- There must be at least one organ composed of representatives from two or more states and independent of any particular state.
- Organizational members are the foundation and the source of authority of an international organization.

- **Rules and Regulations:**

- The rules and regulations of an international organization define its purposes and principles.
- They are the soul of the organization's establishment and development, and the foundation that ensures its day-to-day functioning.
- Organizational Structure
 - - “Deliberative and Policy-Making Bodies” - “Executive and Judicial Organs”
 - - “Administrative and Management Agencies” “Specialized and Subsidiary Bodies”



联合国系统



联合国主要机构

大会

附属机构

主要和其他委员会
裁军委员会
人权理事会
国际法委员会
常设委员会及特设机构

基金和方案¹

开发署 联合国开发计划署
* 资发基金 联合国资本发展基金
* 联合国志愿人员组织
环境署² 联合国环境规划署
人口基金 联合国人口基金
人居署³ 联合国人类住区规划署
儿基会 联合国儿童基金会
粮食署 世界粮食计划署(联合国/粮农组织)

研究和训练

裁研所 联合国裁军研究所
训研所 联合国训练研究所
联合国系统职员学院
联合国大学

其他实体

贸易中心 国际贸易中心(联合国/世贸组织)
贸发会议^{1,8} 国际贸易和发展会议
难民署¹ 联合国难民事务高级专员办事处
项目厅 联合国项目事务厅
近东救济工程处¹ 联合国近东巴勒斯坦难民救济和工程处
妇女署¹ 联合国促进性别平等和增强妇女权能署

相关组织

禁核试组织筹委会 全面禁止核试验条约组织筹备委员会
原子能机构^{1,3} 国际原子能机构
国际刑警 国际刑事法院
海管局 国际海底管理局
海洋法法庭 国际海洋法法庭
禁化武组织³ 禁止化学武器组织
世贸组织^{1,4} 世界贸易组织

安全理事会

附属机构

反恐主义委员会
卢旺达问题国际刑事法庭(卢旺达问题国际法庭)

前南斯拉夫问题国际刑事法庭
(前南问题国际法庭)
国际刑事法庭机制
军事参谋团

维持和平行动及政治特派团
制裁委员会(特设)
常设委员会及特设机构

咨询附属机构

建设和平委员会

高级别政治论坛

可持续发展问题高级别政治论坛

经济及社会理事会

职司委员会

预防犯罪和刑事司法
麻醉药品
人口与发展
科学和技术促进发展
社会发展
统计
妇女地位
联合国森林论坛

区域委员会⁶

非洲经委会 非洲经济委员会
欧洲经委会 欧洲经济委员会
拉加经委会 拉丁美洲和加勒比经济委员会
亚太经社会 亚洲及太平洋经济社会委员会
西经社会 西亚经济社会委员会

其他机构

发展政策委员会
公共行政专家委员会
非政府组织委员会
土著问题常设论坛
艾滋病署 联合国艾滋病病毒/艾滋病联合规划署
地名专家组 联合国地名专家组

研究和训练

犯罪司法所 联合国区域间犯罪和司法研究所
社发所 联合国社会发展研究所

专门机构^{1,5}

粮农组织 联合国粮食及农业组织
国际民航组织 国际民用航空组织
农发基金 国际农业发展基金
劳工组织 国际劳工组织
基金组织 国际货币基金组织
海事组织 国际海事组织
国际电联 国际电信联盟
教科文组织 联合国教育、科学及文化组织
工发组织 联合国工业发展组织
世旅组织 世界旅游组织
万国邮联 万国邮政联盟
世卫组织 世界卫生组织
知识产权组织 世界知识产权组织
气象组织 世界气象组织
世界银行集团⁷
* 世界银行 国际复兴开发银行
* 开发协会 国际开发协会
* 金融公司 国际金融公司

秘书处

部和厅

秘书长办公厅
经社部 经济和社会事务部
外勤部 外勤支助部
大会部 大会和会议管理部
管理部 管理事务部
政治部 政治事务部
新闻部
维和部 维持和平行动部
安保部 安全和安保部
人道协调厅 人道主义事务协调厅

人权高专办 联合国人权事务高级专员办事处
监督厅 内部监督事务厅
法律厅 法律事务厅
非洲顾问办 非洲问题特别顾问办公室
建设和平支助办公室
儿童与冲突问题特代办 负责儿童与武装冲突问题秘书长特别代表办公室
冲突中性暴力问题特代办 负责冲突中性暴力问题秘书长特别代表办公室
减灾办 联合国减少灾害风险办公室

裁军厅 联合国裁军事务厅
毒品和犯罪问题办公室¹ 联合国毒品和犯罪问题办公室
日内瓦办事处 联合国日内瓦办事处
最不发达国家离办 最不发达国家、内陆发展中国家和小岛屿发展中国家高级代表办公室
内罗毕办事处 联合国内罗毕办事处
伙伴关系办公室² 联合国伙伴关系办公室
维也纳办事处 联合国维也纳办事处

国际法院

托管理事会⁶

注:

- 1 均为联合国系统行政首长协调理事会(首协会)的成员。
- 2 伙伴关系办公室是联合国对联合国基金会的协调中心。
- 3 原子能机构和禁化武组织向安全理事会和大会报告。
- 4 世贸组织对大会无报告义务,但不定期为大会和经济及社会理事会(经社理事会)开展金融和发展等方面的工作。
- 5 专门机构为自治组织,其工作通过经社理事会(政府间一级)和首协会(秘书处一级)进行协调。
- 6 随着剩下的最后一个联合国托管领土于1994年10月1日取得独立,托管理事会在1994年11月1日停止运作。
- 7 根据《宪章》第57和63条,解决投资争端国际中心和多边投资担保机构并非专门机构,而是世界银行集团的组成部分。
- 8 这些机构的秘书处是联合国秘书处的组成部分。

本图表反映联合国系统的职能性组织架构,仅作情况介绍之用,未包含联合国系统的所有办事处或实体。



The United Nations System

UN PRINCIPAL ORGANS

GENERAL ASSEMBLY

SECURITY COUNCIL

ECONOMIC AND SOCIAL COUNCIL

SECRETARIAT

INTERNATIONAL COURT OF JUSTICE

TRUSTEESHIP COUNCIL^a

Subsidiary Organs

- Main Committees
- Disarmament Commission
- Human Rights Council
- International Law Commission
- Joint Inspection Unit (JIU)
- Standing committees and ad hoc bodies

Funds and Programmes¹

- UNDP United Nations Development Programme
- UNCDF United Nations Capital Development Fund
- UNV United Nations Volunteers
- UNEP United Nations Environment Programme
- UNFPA United Nations Population Fund
- UN-Habitat United Nations Human Settlements Programme
- UNICEF United Nations Children's Fund
- WFP World Food Programme (UN/FAO)

Subsidiary Organs

- Counter-Terrorism Committee
- International Tribunal for the former Yugoslavia (ICTY)
- International Residual Mechanism for Criminal Tribunals
- Military Staff Committee

Functional Commissions

- Crime Prevention and Criminal Justice
- Narcotic Drugs
- Population and Development
- Science and Technology for Development
- Social Development
- Statistics
- Status of Women
- United Nations Forum on Forests

Regional Commissions^a

- ECA Economic Commission for Africa
- ECE Economic Commission for Europe
- ECLAC Economic Commission for Latin America and the Caribbean
- ESCAP Economic and Social Commission for Asia and the Pacific
- ESCSA Economic and Social Commission for Western Asia

Departments and Offices^a

- EOSSG Executive Office of the Secretary-General
- DESA Department of Economic and Social Affairs
- DPS Department of Field Support
- DGACM Department for General Assembly and Conference Management
- DM Department of Management
- DPA Department of Political Affairs
- DPID Department of Public Information
- DPKO Department of Peacekeeping Operations
- DSS Department of Safety and Security
- OCHA Office for the Coordination of Humanitarian Affairs
- ODA Office for Disarmament Affairs
- ONCHR Office of the United Nations High Commissioner for Human Rights
- OIOS Office of Internal Oversight Services
- OLA Office of Legal Affairs
- OSAA Office of the Special Adviser on Africa
- PSOS Peacebuilding Support Office
- SRSQ/CACAC Office of the Special Representative of the Secretary-General for Children and Armed Conflict
- SRSQ/SVC Office of the Special Representative of the Secretary-General on Sexual Violence in Conflict
- SRSQ/VAC Office of the Special Representative of the Secretary-General on Violence Against Children
- UNISDR United Nations Office for Disaster Risk Reduction

Research and Training

- UNIDIR United Nations Institute for Disarmament Research
- UNITAR United Nations Institute for Training and Research
- UNSSC United Nations System Staff College
- UNU United Nations University

Other Entities

- ITC International Trade Centre (UN/WTO)
- UNCTAD United Nations Conference on Trade and Development
- UNHCR Office of the United Nations High Commissioner for Refugees
- UNOPS United Nations Office for Project Services
- UNRWA United Nations Relief and Works Agency for Palestine Refugees in the Near East
- UN-Women United Nations Entity for Gender Equality and the Empowerment of Women

Related Organizations

- CTBTO Preparatory Commission Preparatory Commission for the Comprehensive Nuclear-Test-Ban Treaty Organization
- IAEA^{1,2} International Atomic Energy Agency
- ICC International Criminal Court
- IOI³ International Organization for Migration
- ISA International Seabed Authority
- ITLOS International Tribunal for the Law of the Sea
- OPCW⁴ Organization for the Prohibition of Chemical Weapons
- WTO^{5,6} World Trade Organization

Peacebuilding Commission

HLPF High-level political forum on sustainable development

Specialized Agencies^a

- FAO Food and Agriculture Organization of the United Nations
- ICAO International Civil Aviation Organization
- IFAD International Fund for Agricultural Development
- ILO International Labour Organization
- IMF International Monetary Fund
- IMO International Maritime Organization
- ITU International Telecommunication Union
- UNESCO United Nations Educational, Scientific and Cultural Organization
- UNIDO United Nations Industrial Development Organization
- UNWTO World Tourism Organization
- UPU Universal Postal Union
- WHO World Health Organization
- WIPO World Intellectual Property Organization
- WMO World Meteorological Organization
- WORLD BANK GROUP⁷
 - IBRD International Bank for Reconstruction and Development
 - IDA International Development Association
 - IFC International Finance Corporation

Notes:

- Members of the United Nations System Chief Executives Board for Coordination (CESB).
- UN Office for Partnerships (UNOP) is the UN's focal point vis-à-vis the United Nations Foundation, Inc.
- IAEA and OPCW report to the Security Council and the General Assembly (GA).
- WTO has no reporting obligation to the GA, but contributes on an ad hoc basis to GA and Economic and Social Council (ECOSOC) work on, inter alia, finance and development issues.
- Specialized agencies are autonomous organizations whose work is coordinated through ECOSOC (intergovernmental level) and CESB (inter-secretariat level).
- The Trusteeship Council suspended operation on 1 November 1994, as on 1 October 1994 Palau, the last United Nations Trust Territory, became independent.
- International Centre for Settlement of Investment Disputes (ICSID) and Multilateral Investment Guarantee Agency (MIGA) are not specialized agencies in accordance with Articles 57 and 63 of the Charter, but are part of the World Bank Group.
- The secretariats of these organs are part of the UN Secretariat.
- The Secretariat also includes the following offices: The Ethics Office, United Nations Ombudsman and Mediation Services, Office of Administration of Justice and the Office on Sport for Development and Peace.

This Chart is a reflection of the functional organization of the United Nations System and for informational purposes only. It does not include all offices or entities of the United Nations System.

SECTION TWO CLASSIFICATION AND CHARACTERISTICS OF INTERNATIONAL ORGANIZATIONS

I. CLASSIFICATION OF INTERNATIONAL ORGANIZATIONS

- (1) Inter-governmental organizations (IGOs)
- A union or association formed by two or more sovereign states, established by their governments through an agreement governed by international law, possessing a permanent system or set of organs, and aimed at pursuing objectives of common interest through cooperation among its members.
- (2) International Non-governmental organizations (INGOs)
- - Typically unions created by private individuals or civil-society groups.
- - Two key features: non-official membership and a wide range of activity fields.

TYPES OF INTER-GOVERNMENTAL ORGANIZATIONS

- Classification of Inter-Governmental Organizations
 - - By membership scope:
 - – Universal organizations (open to all states)
 - – Closed organizations (restricted membership)
 - - By nature and functional scope:
 - – General organizations (broad mandates)
 - – Specialized organizations (limited, technical mandates)
 - - By institutional form:
 - – Traditional treaty-based organizations
 - – Forum-type organizations

TYPES OF INTER-GOVERNMENTAL ORGANIZATIONS

- - By geographic scope of membership:
 - – Global organizations
 - – Regional organizations
- - By degree of binding force:
 - – Binding international organizations
 - – Non-binding international organizations

II. CHARACTERISTICS OF INTERNATIONAL ORGANIZATIONS

- **1) International character:** - International membership ; - International scope of activities and influence
- **2) Instrumentality:** International organizations are instruments through which member states pursue their common interests and objectives.
- **3) Non-profit character:** They do not operate for profit; they rely mainly on membership dues or voluntary contributions.
- **4) Institutionalization:** Unlike ad-hoc multilateral conferences, an international organization must function in accordance with its own charter, carrying out the responsibilities agreed upon by its members in order to fulfill the purposes for which it was established.
- **5) Independence:** Possesses its own legal personality and autonomous will.
- **6) Relative impartiality:** By drawing on powerful moral forces—such as the pressure of world opinion, widely shared organizational beliefs, and long-standing customary practices—international organizations shape the conduct and mutual relations of members, thereby upholding and safeguarding the organization's own sense of justice.

SECTION THREE

MEMBERSHIP IN INTERNATIONAL ORGANIZATIONS

I. FULL MEMBERSHIP IN INTERNATIONAL ORGANIZATIONS

- - Full members
- May normally participate in all the organization's activities and possess complete rights—representation, voting, and access to benefits—while assuming all of the organization's obligations.

- - Partial members
- Are those that take part only in selected activities of the organization. They enjoy only some rights and shoulder only some obligations, yet with respect to the specific bodies in which they do participate they may be full members of those bodies.

(I) HOW MEMBERSHIP IS ACQUIRED

- By signing and ratifying the treaty that establishes the organization, thereby becoming a founding member.
- After the organization's creation, by meeting the prescribed conditions and being admitted as a new member.
- Through state succession: when a state loses its international legal personality or part of its territory, its rights and obligations under international law pass to one or more successor states.

Example: After the dissolution of the USSR, Russia succeeded to its seat at the United Nations.

(II) GUIDING PRINCIPLES FOR MEMBERSHIP

- Principle of universalism
 - The more members, the better.
 - Few restrictions regarding geography, economy, ethnicity, or religion.
 - Flexible conditions and procedures for admission.
- Principle of selectivity
 - Applied by regional or closed organizations.
 - Sets specific admission criteria aligned with the organization's purposes, such as restrictions on geography, religious affiliation, or economic profile.

(III) NON-SOVEREIGN ENTITIES AS MEMBERS OF INTER-GOVERNMENTAL ORGANIZATIONS

- Special territories as full members
- One international organization as a full member of another international organization
- Self-governing and non-self-governing territories as full members
- Member groups (blocs) may also hold membership

II. INFORMAL MEMBERS OF INTERNATIONAL ORGANIZATIONS

- **Associate Members** (Affiliate Members)
 - Are accepted to participate in the activities of the organization
 - Compared to full members, associate members have limited rights and obligations within international organizations
- **Observers:** Actors that are conditionally invited or accepted to attend relevant meetings or participate in certain activities.
 - Include non-member states, international organizations, national liberation movements, and individuals
 - Their primary functions are to observe and consult; they do not enjoy rights such as voting rights granted to full members.

(I) THE OBSERVER STATUS SYSTEM

1. The observer status system represents a major innovation in the membership systems of international organizations. It is a mode of participation in international affairs that has continuously developed and been refined through the practice of international organizations.
2. In the practice of international organizations, becoming an observer is typically the first step toward joining an organization as a full member.
3. The observer status system also serves as an important pathway for non-governmental international organizations to participate in the affairs of other international organizations and to expand their international cooperation and influence.

RIGHTS OF OBSERVERS

1. Right to attend meetings

- May sit in sessions and, through lobbying outside or during the meeting, influence delegates and thereby shape final decisions.

2. Right to receive and circulate documents

- Obtain information from the organization in a timely and appropriate manner, enabling fuller participation in its activities.

3. Right to speak and respond

- Address the conference:
 - (1) comment on agenda items that concern the observer's organization,
 - (2) answer questions raised by member states,
 - (3) provide explanations or clarifications on specific incidents at the organization's request.

4. Right to make proposals

- The rules of procedure of UNIDO, for example, allow certain non-member specialized agencies to submit recommendations that may be put to a vote.

DISCUSSION QUESTIONS:

1. What elements constitute an international organization, and why?
2. What new characteristics have emerged in the development of contemporary international organizations?
3. What are the types, features, and roles of members within international organizations?
4. How should we understand the relationship between the interests and values of international organizations?